

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEINONTINUED	PAGE OF
---------------------------	--	---------

SECTION A - TABLE OF CONTENTS

Attachments

SECTION	DESCRIPTION	PAGE
PART I – The Schedule		
A	Solicitation/Contract Form	2
B	Clauses and Provisions	36
C	Statement of Work	3
D	Technical Questionnaire	5
E	Past Performance Questionnaire,	3
F	Wage Determination	10
		59

SECTION B – BID SCHEDULE

Item No.	Description	Quantity	Unit of Measurement	Unit Price	Total Price
001	Equipment five, 5 Ton Heat Pumps	5	Lump Sum	\$ _____	\$ _____
002	HVAC, Mechanic	1	Lump Sum	\$ _____	\$ _____
003	Electrician	1	Lump Sum	\$ _____	\$ _____
004	Controls Technician	1	Lump Sum	\$ _____	\$ _____
005	Reclamation Implementation				
006	Disposal / Startup /Clean-up	3	Lump Sum	\$ _____	\$ _____
007	Overhead and Profit				
Total Base Price (Contract Line-Item Number 1-7)					\$ _____

Notice – Offerors are required to submit, at minimum, an offer that conforms to the solicitation documents with pricing for all Base Items. Failure to do so may render the proposal unacceptable. On lump-sum line items, provide the total price only. For all unit-priced line items, provide the unit price and the extended total price. If no specific line item exists for a portion of the work, include the costs in related item. In case of error in calculation of extended prices, the unit price governs. In case of error in summation, the total of the corrected amounts governs. Round total and extended prices to whole dollars.

FAR 36.204 Disclosure of the magnitude of construction projects

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF
---------------------------	---	--------------

The Government's estimate is:

Between \$50,000.00 and \$77,000.00.

SECTION C – SPECIFICATIONS/DRAWINGS

- Capacity: 5 tons per u
- Efficiency: Minimum EER 15.0 and COP 4.5 or higher.
- Refrigerant: EPA-approved
- Controls: Compatible with existing building automation system.
- Construction: Heavy-gauge galvanized steel cabinet with sound insulation.

PURPOSE

The Glenmont Mansion, part of the Thomas Edison National Historical Park, utilizes a geothermal system to provide heating and cooling. (5) water source heat pumps, each rated at 5 tons, have reached the end of their service life and require replacement to maintain system efficiency and reliability.

SCOPE OF WORK

Location: Glenmont Mansion – Thomas Edison National Historical Park, 119 Park Way, West Orange, NJ 07052.

1. Background

The Glenmont Mansion, part of the Thomas Edison National Historical Park, utilizes a geothermal system to provide heating and cooling. (5) water source heat pumps, each rated at 5 tons, have reached the end of their service life and require replacement to maintain system efficiency and reliability.

2. Objectives

The objective of this project is to remove and replace (5) existing water source heat pumps with new, medium-efficiency units compatible with the existing geothermal loop system. The work must be completed in compliance with National Park Service standards, local building codes, and environmental regulations.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 7 of 69
---------------------------	---	-----------------------------

3. Scope of Work

A. Removal

- Disconnect electrical, piping, and controls from existing heat pumps.
- Drain and cap water lines as necessary.
- Remove existing heat pump units and associated supports.
- Dispose of old equipment per EPA and local regulations.

B. Installation

- Furnish and install five (5) new water source heat pumps, each rated at 5 tons.
- Ensure compatibility with the existing geothermal system.
- Reconnect piping, electrical, and controls.
- Install vibration isolation pads and insulate piping.
- Verify leak-free connections and proper mounting.

C. Testing and Commissioning

- Test heating and cooling operation for each unit.
- Integrate into basic control capability to the Building automation system, KMC system
- Balance water flow and verify system performance.
- Provide start-up report and commissioning documentation.

4. Technical Specifications

- Capacity: 5 tons per unit.
- Efficiency: Minimum EER 15.0 and COP 4.5 or higher.
- Refrigerant: EPA-approved
- Controls: Compatible with existing building automation system.
- Construction: Heavy-gauge galvanized steel cabinet with sound insulation.

5. Warranty

- Equipment: Minimum 5 years on compressor, 1 year on parts.
- Labor: Minimum 1 year on installation workmanship.

6. Environmental & Sustainability Compliance

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 8 of 69
---------------------------	---	---------------------------

- Meet ASHRAE 90.1 energy efficiency standards.
- Follow EPA refrigerant handling and disposal guidelines.
- Minimize waste and recycle materials where possible.

7. Deliverables

- Equipment submittals prior to installation.
- Operation and maintenance manuals.
- Training for NPS staff on system operation.

8. Period of Performance

- Duration: 90 calendar days from Notice to Proceed.
- Work Hours: Monday through Friday, 7:30 AM to 3:30 PM.
- No work on weekends or federal holidays.

9. Safety and Compliance

- Comply with OSHA safety standards.
- Protect historic finishes and structures during work.
- Maintain clean and secure work areas.

Contracting Officer's Representative (COR): Peter Hepp

Project Manager: Tim Stauffer

SAFETY

During the execution of this contract, the Contractor must conform to the rules and regulations, as amended and as set forth by:

29 CFR 1910 – OSHA General Industry Regulations & Standards

29 CFR 1926 – OSHA Construction Industry Regulations & Standards

National Park Service Occupational Safety and Health Program – Reference Manual 50B - [Reference Manual 50B: NPS Occupational Safety and Health Program](#)

PROHIBITION OF WEAPONS/FIREARMS

18 USC 930 is Federal law that supersedes Section 512 of Public Law 111-24 and prohibits the possession of a firearm or other dangerous weapon in a Federal facility. Federal facilities are buildings or parts thereof owned or leased by the Federal Government, where Federal employees are regularly present for the purpose of performing official duties. No weapon or firearms are authorized within GUMO at any time.

EXISTING UTILITIES

The contractor shall field verify all utility locations before digging or trenching. This shall include but not be limited to the use of sonic, electronic or magnetic detection devices, by noting pull box and utility box locations at the surface, use of locator services, and by potholing. The contractor shall be responsible for repairing any utilities damaged during construction at no additional cost to the Government.

PERMITS AND CERTIFICATES

Submit copies of all permits and certificates as required by the *contract*. All permit costs shall be incorporated into Contractors' proposal cost, which may or may not be a separately priced line item.

ENVIRONMENTAL REGULATIONS

All waste materials generated by any work under the contract performed on a Government installation shall at all times be handled, transported, stored, and disposed of by the contractor and by their subcontractors in accordance with all applicable Federal, state, and local laws, ordinances, regulations, court orders, and other types of rulings having the effect of the law, including, but not limited to:

- Executive Order 12088, 13 October 1978, Federal Compliance with Pollution Control Standards;
- Federal Water Pollution Control Act, as amended (33 U.S.C. 1251 ET SEQ);
- Clean Air Act as amended (42 U.S.C. Sec 7401 ET SEQ);
- Endangered Species Act, as amended (16 U.S.C. Sec 1531 ET SEQ);
- Toxic Substances Control Act, as amended (15 U.S.C. Sec 2601, ET SEQ);
- National Historic Preservation Act, as amended (16 U.S.C. Sec 470, ET SEQ);
- Solid Waste Disposal Act, as amended (42 U.S.C. 6901 ET SEQ);
- Archaeological and Historic Preservation Act, as amended (16 U.S.C. Sec 469, ET SEQ).

Should the United States Government be held liable for any neglect or improper actions by the contractor or any subcontractor regarding removal or disposal of any hazardous waste, the contractor shall reimburse the Government for all such liability.

MATERIAL & EQUIPMENT TRANSPORTATION, HANDLING AND STORAGE

- A. Contractor shall have a representative on site to receive material deliveries, and the contractor shall remain responsible for all material deliveries whether their representative is on site at the time of delivery or not.
- B. Government-owned equipment is not available for Contractor's use to accomplish any Work, and Government buildings and other facilities are not available for storage of Contractor's materials, equipment, and tools.
- C. Transport, handle, and store materials and equipment in accordance with the manufacturer's written instructions, and in a secure manner.
- D. Store products that are subject to damage by the elements, under cover in a weathertight enclosure above ground, with ventilation adequate to prevent condensation. Protect liquids from freezing.
- E. Promptly remove from the project site any materials or equipment that are damaged or are otherwise unsuitable.
- F. Additional Permitting, fees, and coordination may be required working within the limits of Washington, DC. Additional restrictions may be imposed due to unforeseen events or security threats in Washington, DC.

PROJECT MANAGER

The contractor shall provide a responsible project manager to represent the contractor in all matters pertaining to work under this contract. The project manager shall have the responsibility of overall supervision, quality control, cost estimating and be responsible for the management of all ongoing work. The Project Manager must be available in person, by telephone, or radio to respond to any and all problems during normal working hours. The response from the Project

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 10 of 69
---------------------------	---	----------------------------

Manager must be within 1 hours after receiving the notification and should be in the same means as the request. Written follow up notification (via email is acceptable) must be provided to COR/POC within 24 hours, which confirms response.

CONTRACTOR'S REPRESENTATIVE

The Contractor shall provide a contract representative for the performance of the work. The name of this person and an alternate(s) who act for the contractor when the Contractor is absent shall be designated in writing to the CO. The Contractor representative or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The Contractor representative and alternate(s) must be able to read, write, speak, and understand English without use of a translator. Under no circumstances shall any documents, Task Orders Statement of Work, Work Schedules, Contractor submittals, Contractor plans, etc., be translated. All documentation shall be submitted in the English language.

ADDITIONAL REQUIREMENTS FOR CONTRACTOR

- All local and state requirements, which may include inspections and licensing requirements for specific trades.
- Adherence to all Occupational Safety and Health Administration (OSHA) Regulation, specifically 29 CFR 1910 - General Industry and 29 CFR 1926 – Construction and applicable State Regulations.
- Adhere to specific NPS site/location requirements that are operate under additional guidance and regulations specific to a NPS Location in addition to the Federal Acquisition Regulations and other Federal Regulations that may be stated and included at the Task Order Level. These include but are not limited to:
 - Directors Orders - [Director's Orders and Related Documents/NPS Office of Policy](#) – which can have an impact on work performed.

DAMAGE AND LOSS

The Contractor shall assume all risks of injury to persons, equipment and/or property in connection with the performance of work under this contract shall indemnify and save harmless the Government against all claims, causes of action, cost and expense, because of bodily injuries, death, or damages to Property arising from all work activities of the Contractor.

If due to fault, neglect, dishonesty of the contractor, his agency or employees, loss or damage to government property is incurred during the performance of this contract, the contractor shall be responsible for the same. The government, at its option, in lieu of repayment, may require the contractor to replace at his own expense, all property as directed by the Contracting Officer.

BIOBASED AND SUSTAINABLE PRODUCTS

The Federal Acquisition Regulation; Executive Order (EO) 13514, “*Federal Leadership in Environmental, Energy and Economic Performance*,” dated October 5, 2009; EO 13423, “*Strengthening Federal Environmental, Energy, and Transportation Management*,” dated January 24, 2007; and Presidential Memorandum, “*Driving Innovation and Creating Jobs in Rural America through Biobased and Sustainable Product Procurement*,” dated February, 2012 to provide biobased products.

All supplies and materials shall be of a type and quantity that conform to applicable Federal specifications and standards, and to the extent feasible and reasonable; include the exclusive use of biobased and recycled products.

The following is a list of categories for biopreferred products that may be required in performance of this construction contract:

- **2-Cycle Engine Oils – 34% Minimum Biobased Content**
- **Animal Medical Care Products – 25% Minimum Biobased Content**
- **Animal Skin, Hair, and Insect Care Products – 25% Minimum Biobased Content**

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 11 of 69
--------------------	---	---------------------

- **Chain and Cable Lubricants – 77% Minimum Biobased Content**
- **Clothing – Utility Gloves – 25% Minimum Biobased Content**
- **Diesel Fuel Additives – 90% Minimum Biobased Content**
- **Dust Suppressants – 85% Minimum Biobased Content**
- **Erosion Control Materials – 77% Minimum Biobased Content**
- **Fuel Conditioners – 64% Minimum Biobased Content**
- **Greases – Multipurpose – 72% Minimum Biobased Content**
- **Greases – Truck – 71% Minimum Biobased Content**
- **Inks – Printer Toner (Greater Than 25 Pages Per Minute) – 20% Minimum Biobased Content**
- **Inks – Printer Toner (Less Than 25 Pages Per Minute) – 34% Minimum Biobased Content**
- **Mobile Equipment Hydraulic Fluids – 44% Minimum Biobased Content**
- **Penetrating Lubricants – 68% Minimum Biobased Content**
- **Pneumatic Equipment Lubricants – 67% Minimum Biobased Content**
- **Rope and Twine – 25% Minimum Biobased Content**
- **Safety Equipment – 25% Minimum Biobased Content**
- **Shopping and Trash Bags – 22% Minimum Biobased Content**
- **Sorbents – 89% Minimum Biobased Content**

DEFINITIONS (Not included in Federal Acquisition Regulations)

Wherever in these provisions, or in other contract documents, the following terms, or pronouns in place of them, are used, the intent and meaning shall be interpreted as follows:

2-Cycle Engine Oils - Lubricants designed for use in 2-cycle engines to provide lubrication, decreased spark plug fouling, reduced deposit formation, and/or reduced engine wear.

Animal Medical Care Products – Products intended to treat medical problems in animals. Includes first aid products and products that can treat, but are not limited to, body systems, urinary problems, allergies, inflammation, and scarring.

Animal Skin, Hair, and Insect Care Products – Products used to improve the quality of animal skin and hair. Products do not include shampoos. Also includes any flea control or insect repellent.

Calendar Days - Every day shown on the calendar, Saturdays, Sundays and holidays included.

Chain and Cable Lubricants – Products designed to provided lubrication in such applications as bar and roller chains, sprockets, and wire ropes and cables. Products may also prevent rust and corrosion in these applications.

Change Order - An order issued to the Contractor by the Contracting Officer, pursuant to the “change” clause included in Section I of this contract, requiring work to be performed, within the general scope of the contract.

Clothing – Utility Gloves – A fitted hand garment used to protect hands in industrial and construction work.

Clearing Limits - The limits of clearing as designated on the ground, shown on the drawing or designated in the Special Project Specifications.

Contract Pay Item - A pay item designated on the bid schedule and described by a specification.

Concrete Curing Agents – Products that are designed to enhance and control the curing process of concrete.

Concrete Repair Materials – Products designed to repair cracks and other damage to concrete.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 12 of 69
---------------------------	---	---------------------

Concrete and Asphalt Cleaners - Chemicals used in concrete etching as well as to remove petroleum-based soils, lubricants, paints, mastics, organic soils, rust, and dirt from concrete, asphalt, stone and other hard porous surfaces. Products within this item include only those marketed for use in commercial or residential construction or industrial applications

Concrete and Asphalt Release Fluids - Products that are designed to provide a lubricating barrier between the composite surface materials (e.g., concrete or asphalt) and the container (e.g., wood or metal forms, truck beds, roller surfaces).

Contractor - The individual, partnership, joint venture, or corporation undertaking the execution of work under the terms of the contract and acting directly or through their agent, employees, or subcontractors.

Corrosion Preventatives - Products designed to prevent the deterioration (corrosion) of metals.

Diesel Fuel Additives - (1) Any substance, other than one composed solely of carbon and/or hydrogen, that is intentionally added to diesel fuel (including any added to a motor vehicle's fuel system) and that is not intentionally removed prior to sale or use. (2) Neat biodiesel, also referred to as B100, when used as an additive. Diesel fuel additive does not mean neat biodiesel when used as a fuel or blended biodiesel fuel (e.g., B20).

Drawings - The approved documents and reproductions of these documents, including plan and profile sheets, cross sections, site plants, diagrams, layouts, schematics, descriptive literature, illustrations, schedules, and similar documents showing details for construction of a facility.

Dust Suppressants – Products formulated to reduce or eliminate the spread of dust associated with gravel roads, dirt parking lots, or similar sources of dust, including products used in equivalent indoor applications.

Erosion Control Materials - Woven or non-woven fiber materials manufactured for use on construction, demolition, or other sites to prevent wind or water erosion of loose earth surfaces, which may be combined with seed and/or fertilizer to promote growth.

Equipment - All machinery and equipment, together with the necessary supplies for upkeep and maintenance, including tools and apparatus necessary for the proper construction and acceptable completion of the work.

Fuel Conditioners - Products formulated to improve the performance and efficiency of engines by providing benefits such as removing accumulated deposits, increasing lubricity, removing moisture, increasing the cetane number, and/or preventing microbial growths within the fuel system.

Greases – Multipurpose – Lubricants composed of oils thickened to a semisolid or solid consistency using soaps, polymers or other solids, or other thickeners. Lubricants that are designed for general use.

Greases – Truck - Lubricants composed of oils thickened to a semisolid or solid consistency using soaps, polymers or other solids, or other thickeners. Lubricants that are designed for use on the fifth wheel of tractor trailer trucks onto which the semi-trailer rests and pivots.

Inks - Printer Toner (Greater Than 25 Pages Per Minute) - Inks are liquid or powdered materials that are available in several colors and that are used to create the visual image on a substrate when writing, printing, and copying. Inks that are a powdered chemical, used in photocopying machines and laser printers, which is transferred onto paper to form the printed image. These inks are formulated to be used in printers with advanced fusing mechanisms and print speeds of 25 ppm or greater.

Inks - Printer Toner (Less Than 25 Pages Per Minute) - Inks are liquid or powdered materials that are available in several colors and that are used to create the visual image on a substrate when writing, printing, and copying. Inks that are a powdered chemical, used in photocopying machines and laser printers, which is transferred onto paper to form the printed

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 13 of 69
---------------------------	---	----------------------------

image. These inks are formulated to be used in printers with standard fusing mechanisms and print speeds of less than 25 ppm.

Labor Standards Provisions - Those statutory and regulatory requirements pertaining to the Contractor's employees and employment practices.

Materials - Any substances for use in the construction of the project and its appurtenances.

Mobile Equipment Hydraulic Fluids - Hydraulic fluids formulated for general use in nonstationary equipment, such as tractors, end loaders, or backhoes.

Notice of Noncompliance - A written notice from the Contracting Officer's representative or inspector which documents, for the Contractor's attention, specific performance deficiencies.

Penetrating Lubricants – Products formulated to provide light lubrication and corrosion resistance in close tolerant internal and external applications including frozen nuts and bolts, power tools, gears, valves, chains, and cables.

Pneumatic Equipment Lubricants – Lubricants designed specifically for pneumatic equipment, including air compressors, vacuum pumps, in-line lubricators, rock drills, jackhammers, etc.

Right of Way - A general term denoting land, property, or interest therein acquired for or devoted to a road or a construction site.

Rope and Twine – A length of fibers twisted or braided together used to secure loads.

Safety Equipment – Equipment used by workers that protects against worksite accidents, such as goggles, ear plugs, face shields and gloves.

Schedule of Items - Schedule in the contract which contains a listing and description of construction items, quantities, units of measure, method of measurement, unit price and amount.

Shopping and Trash Bags – Open-ended bags that are typically made of thin, flexible film and are used for containing and transporting items such as consumer goods and waste. Examples include trash bags, can liners, shopping or grocery bags, pet waste bags, compost bags, and yard waste bags. This category does not include product packaging, disposable containers, or semi-durable and non-durable films.

Sorbents – Materials formulated for use in the cleanup and bioremediation of oil and chemical spills, the disposal of liquid materials, or the prevention of leakage or leaching in maintenance applications, shop floors, and fuel storage areas.

Special Project Specifications - Specifications which detail the conditions and requirements peculiar to the individual project, including but not limited to CSI format specifications and additions and revisions to Standard Specifications.

Specifications - A general term applied to all written directions and requirements pertaining to performance of work.

Standard Specifications - Specifications established for Region wide use for construction of facilities which cover most items of work likely to be performed; such as Earthwork, Base Courses, Pavement, Concrete, etc.

Utility Services - Are services such as electricity, gas, steam, water and sewage.

Work Order - An order written by the Contracting Officer or Contracting Officer's Representative, which directs the Contractor to correct deficient performance. It may also be used to document acceptable completion of units and to approve starting on additional work units.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 14 of 69
---------------------------	---	----------------------------

THE ROLE OF GOVERNMENT PERSONNEL AND RESPONSIBILITY FOR CONTRACT ADMINISTRATION

- A. Contracting Officer: The Contracting Officer (CO) has the overall responsibility for the administration of this contract. The CO alone, without delegation, is authorized to amend, modify, or deviate from the contract. Other responsibilities may be delegated to authorized representatives.
- B. Contracting Officer's Representative (COR): The COR shall be designated in writing at the time of award to assist the CO in the day-to-day on-site administration of the contract requirements. The responsibilities of the COR include, but are not limited to;
- (1) Determining the compliance and adequacy of performance by the Contractor in accordance with the terms and conditions of this contract;
 - (2) Requesting removal of unsuitable contractor employees;
 - (3) Ensuring adequacy of schedule and Quality Control Plan, including changes;
 - (4) Ordering re-performance of unacceptable work or performance by other mean, etc.
- C. Point-of-Contact (POC): The POC shall be used if an official certified COR, Peter Hepp at time of award. The POC shall not be designated in writing and shall assist the CO in the day-to-day on the 1st day work begins.

SECTION E—INSPECTION AND ACCEPTANCE

FAR 52.252-2 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

acquisition.gov

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

- 52.246-12 Inspection of Construction. (APR 1996)
52.246-13 Inspection – Dismantling, Demolition, or Removal of Improvements (AUG 1996)

FULL-TEXT CLAUSES

Not Applicable

SECTION F—DELIVERIES OR PERFORMANCE

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 15 of 69
---------------------------	---	----------------------------

FAR 52.252-2 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Acquisition.GOV | www.acquisition.gov

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

52.242-14 Suspension of Work. (APR 1984)

FAR 52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984) - ALTERNATE I (APR 1984)

The Contractor shall be required to:

(a) Commence work under this contract within ten (10) calendar days after the date the Contractor receives the notice to proceed,

(b) Prosecute the work diligently, and

(c) Complete the entire work ready for use not later than hundred and sixty (160) days from Notice to Proceed. The time stated for completion shall include final cleanup of the premises.

The completion date may be extended by the number of calendar days after the date that the Contractor receives the notice to proceed, except to the extent that the delay in issuance of the notice to proceed results from the failure of the Contractor to execute the contract and give the required performance and payment bonds within the time specified in the offer.

(End of Clause)

SECTION G—CONTRACT ADMINISTRATION DATA

G.1 POST AWARD CONFERENCE

Prior to commencement of work, the CO, CS or COR and/or POC will arrange a meeting with the contractor to discuss the contract terms and work performance requirements. A work progress schedule will be proposed by the contractor at this meeting complete with a schedule of values. It will be scheduled as soon as possible after the date of the contract award. It is anticipated that this meeting will take place All dates and locations of the conference will be mutually agreed upon and may be held via Microsoft Teams, onsite, or a combination of both.

G.2 GOVERNMENT FURNISHED PROPERTY

The Government will not provide Government Property to the Contractor for use.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 16 of 69
--------------------	---	---------------------

G.3 DESIGNATION OF CONTRACTING OFFICERS REPRESENTATIVE (COR) AND/OR POINT-OF-CONTACT (POC)

- A. The Contracting Officer will designate an individual as Contracting Officer's Representative (COR) at time of award of the contract in accordance with DIAR 1452.201-70 Authorities and Delegations (SEP 2011). The name will be designated on a letter or form.
- B. The COR is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order, or other matter deviating from the terms of this contract be effective or binding upon the Government unless formalized by a proper contractual documents executed by the Contracting Officer prior to completion of the contract.
- C. The Contracting Officer should be informed as soon as possible of any actions or inactions by the Contractor or the Government which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual assignments which were issued by the Contracting Officer's Representative provided they do not affect the delivery schedule or performance period stated in the contract.)
- D. On all matters that pertain to the contract terms the Contractor must communicate with the Contracting Officer. Whenever, in the opinion of the Contractor, the COR's requests effort outside the scope of the contract, the Contractor should so advise the Contracting Officer's Representative. If the COR persists and there still exists a disagreement as to proper contractual coverage, the CO should be notified immediately, preferably in writing if time permits. Proceeding with work without proper contractual coverage could result in nonpayment or necessitate submittal of a contract claim.
- E. The COR's major duties and responsibilities are contained in Contracting Officer Representative Letter. The COR is delegated full authority under this contract except for the following actions which are reserved for the Contracting Officer:
 1. Approve Change Orders and Modifications
 2. Take action to terminate the contract for default or Government convenience.
 3. Make contract adjustments under the Differing Site Conditions clause.
 4. Grant extensions of contract time.
 5. Approve assignment of claims.
 6. Make final decisions under the Disputes clause.
 7. Make final acceptance under the contract.
 8. Make final decisions under the Suspension of Work clause.
 9. Make equitable adjustments.
 10. Authorize change in amount of Payment Retention.
 11. Approve subcontractors.
 12. Approve payments with deductions or final payment.
 13. Approve use and possession prior to completion.
 14. Enforce the warranty provisions.
 15. Issue any direction that would result in a possible change to contract requirements.
- F. The POC will be the official certified COR cannot be designated at the time of award. The POC will be designated in writing and will assist the CO in the day-to-day on-site administration of the contract requirements and/or performance.
 - The POC is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order, or other matter deviating from

the terms of this contract be effective or binding upon the Government unless formalized by a proper contractual document executed by the CO prior to completion of the contract.

- The CO should be informed as soon as possible of any actions or inactions by the Contractor or the Government which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual assignments which were issued by the CO provided they do not affect the delivery schedule or performance period stated in the contract.)
- On all matters that pertain to the contract terms the Contractor must communicate with the CO. Whenever, in the opinion of the Contractor, the POC requests effort outside the scope of the contract, the Contractor should so advise the CO. If the POC persists and there still exists a disagreement as to proper contractual coverage, the CO should be notified immediately, preferably in writing if time permits. Proceeding with work without proper contractual coverage could result in nonpayment or necessitate submittal of a contract claim.

ADMINISTRATIVE CONTRACTING OFFICE

National Park Service
Contracting Operations - Strategic
Business Services Contracting Division
1849 C Street MS2719
Washington, D.C. 20240

SYSTEM FOR AWARD MANAGEMENT (SAM)

The General Service Administration (GSA) Office of Governmentwide Policy is consolidating the governmentwide acquisition and award support systems into one new system – the System for Award Management (SAM). SAM is streamlining processes, eliminating the need to enter the same data multiple times, and consolidating hosting to make the process of doing business with the government more efficient.

The Entity Management functional area of SAM, formerly Central Contractor Registration (CCR), Online Representations and Certifications (ORCA), and Federal Agency Registration (FedReg), is the primary database for the U.S. Federal Government to manage information on potential government business partners or federal financial assistance recipients.

If you have previously registered your entity in CCR, ORCA, or FedReg all of your entity's information has been brought into SAM. You just need to set up a SAM account, migrate your roles and update/renew your entity record in SAM as needed. See the following website [SAM.gov | Home](https://sam.gov) for more information and assistance on registering your entity in SAM. In order to be eligible for an award, potential contractors must comply with all requirements of FAR Clause 52.204-7, System for Award Management.

Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP) (February 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 18 of 69
---------------------------	---	----------------------------

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

Contractor Invoice which must include:

- Contract Number
- Project Name
- Description of work performed
- Date(s) of work performance

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

NOTICE TO CONTRACTOR - CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM (CPARS) (December 2015)

1) FAR 42.1502 directs all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR 42.15.

2) The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in the Past Performance Information Retrieval System (PPIRS) for Government use in evaluating past performance as part of a source selection action.

3) We request that you furnish the Contracting Officer (CO) with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than 30 days after award. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.

4) When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/>.

5) Within 60 days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at <https://www.cpars.gov/>.

- a) Contractor Representatives may then provide comments in response to the evaluation or return the evaluation without comment.
- b) Your comments should focus on objective facts in the AO's narrative and should provide your views on the causes and ramifications of the assessed performance.
- c) All information provided should be reviewed for accuracy prior to submission.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 19 of 69
---------------------------	---	----------------------------

- d) If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting "Accept the Ratings and Close the Evaluation".
- e) Your response is due within 60 calendar days after receipt of the CPAR. On day 15, the evaluation will become available in PPIRS-RC marked as "Pending" with or without comments and whether or not it has been closed.
- f) If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."

6) The following guidelines apply concerning your use of the past performance evaluation:

- a) Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions.
- b) Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.
- c) Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

7) If you wish to discuss a past performance evaluation, you should request a meeting in writing to the CO no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.

8) A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

BIOBASED REPORTING REQUIREMENTS

Prime contractors are required to report the category of product, type of product, and dollar value of all USDA designated biobased products that were purchased in the performance of federal contracts. Federal contractors are required to report annual biobased product purchases made under their service and construction contracts. Based on the Federal Acquisition Regulation (FAR) Clause 52.223-2 - Reporting of Biobased Products Under Service and Construction Contracts, reporting of biobased product purchases is completed through a portal in the System for Award Management (SAM) at [SAM.gov](https://sam.gov) | [Home](#).

If a contract contains FAR Clause 52.223-2, the contractor must report all biobased purchases through SAM.

The Reporting Requirement(s):

- The reporting requirement became effective September 3, 2013;
- It applies to services and construction contractors where contracts have a FAR Clause 52.223-2 - Reporting of Biobased Products Under Service and Construction Contracts, requiring the reporting of biobased product purchases;
- Contractors must report their purchases of biobased products to a reporting portal within SAM;
- Contractors must report the category, product type and dollar value of any USDA designated biobased products purchased by the Contractor; and
- Reporting must be completed by October 31st for the previous entire fiscal year (October 1 - September 30).

To Meet the Requirement(s) Contractors must:

- Access [SAM.gov](https://sam.gov) | [Home](#);
- Complete the required information within the portal and provide documentation to the Contracting Officer;
- If the applicable contract is not accessible in SAM, the contractor should contact their Contracting Officer.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 20 of 69
---------------------------	---	----------------------------

Actions that may be taken to Meet Reporting Requirement(s) by Contracting Officer:

- Require a copy of the reporting data from the Contractor as required in FAR Clause 52.223-2;
- Remind the contractor, as necessary, of the requirement to report BioPreferred product types and dollar value, if any, into SAM at <http://www.sam.gov>. This includes any BioPreferred products used in performing contract-related services or in delivering contract-related products;
- Cure Notice may be issued by Contracting Officer as required by termination clauses.
- Upon failure to correct deficiency issued through Cure Notice contract may be terminated for Cause (FAR 52.212-4) of Terminated for Default under FAR Part 49.

SECTION H—SPECIAL CONTRACT REQUIREMENTS

SPECIAL CLAUSE 1: KEY PERSONNEL

(a) The Contractor shall assign to this contract the following key personnel: *Construction Manager and/or Jobsite Forman or equivalent positions*

(b) During the first 30 days of performance, the Contractor shall make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within 15 calendar days after the occurrence of any of these events and provide the information required by paragraph (c) below. After the initial 30-day period, the Contractor shall submit the information required by paragraph (c) to the Contracting Officer at least 7 calendar days prior to making any permanent substitutions.

(c) The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutes should have comparable qualifications to those of the persons being replaced. The Contracting Officer will notify the Contractor within 7 calendar days after receipt of all required information of the decision on substitutions.

(End of clause)

SPECIAL CLAUSE 1 - INDEMNIFICATION

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 21 of 69
---------------------------	---	----------------------------

The contractor is an 'independent contractor' and shall obtain all necessary insurance to protect themselves from liability arising out of this contract. The contractor hereby agrees to indemnify and hold the Government harmless in connection with, any loss or liability from damage to or destruction of property or from injuries to or death of persons (including the agents and employees of both parties) if such damage, destruction, injury or death arises out of, or is caused by performance of work under this contract, unless such damage, destruction, injury or death is caused solely by the negligence of the Government, its agents or employees. The contractor agrees to include this clause, appropriately modified, in all subcontracts to be performed under this contract.

(End of Clause)

DIAR 1452-201-70 - AUTHORITIES AND DELEGATIONS (SEPT 2011)

- (a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.
- (b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.
- (c) The COR is not authorized to perform, formally or informally, any of the following actions:
 - (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
 - (2) Waive or agree to modification of the delivery schedule;
 - (3) Make any final decision on any contract matter subject to the Disputes Clause;
 - (4) Terminate, for any reason, the Contractor's right to proceed;
 - (5) Obligate in any way, the payment of money by the Government
- (d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum.

 The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph. (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.
- (e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.
- (f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.
- (g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 22 of 69
---------------------------	---	----------------------------

DIAR 1452.204-70 RELEASE OF CLAIMS (JUL 1996)

After completion of work and prior to final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

(End of clause)

DIAR 1452.228-70 LIABILITY INSURANCE (JUL 1996)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

\$200,000.00 each person*
\$500,000.00 each occurrence*
\$20,000.00 property damage*

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

(End of clause)

PART II--CONTRACT CLAUSES

SECTION I--CONTRACT CLAUSES

FAR 52.252-2 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Acquisition.GOV | www.acquisition.gov

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

52.202-1 Definitions
52.203-3 Gratuities
52.203-5 Covenant Against Contingent Fees.

JUN 2020
APR 1984
MAY 2014

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 23 of 69
52.203-6	Restrictions on Subcontractor Sales to the Government.	JUN 2020
52.203-7	Anti-Kickback Procedures.	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity	MAY 2014
52.203-12	Limitation on Payments to Influence Certain Federal Transactions	JUN 2020
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-14	Service Contract Reporting Requirements	OCT 2016
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representation and Certifications	DEC 2014
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	NOV 2021
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023
52.204-25	Prohibition on Contracting for Certain Telecommunication and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.209-6	Protecting the Government Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	JAN 2025
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters <i>(will be removed if awarded value is less than \$550k)</i>	OCT 2018
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	NOV 2015
52.215-2	Audit and Records – Negotiation	JUN 2020
52.219-8	Utilization of Small Business Concerns	JAN 2025
52.219-28	Post-Award Small Business Program Representation	JAN 2025
52.222-3	Convict Labor	JUN 2003
52.222-4	Contract Work Hours and Safety Standards - Overtime Compensation	MAY 2018
52.222-6	Construction Wage Rate Requirements	AUG 2018
52.222-7	Withholding of Funds	MAY 2014
52.222-8	Payrolls and Basic Records	JUL 2021
52.222-10	Compliance with Copeland Act Requirements	FEB 1988
52.222-11	Subcontracts (Labor Standards)	MAY 2014
52.222-12	Contract Termination – Debarment	MAY 2014
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations	MAY 2014
52.222-14	Disputes Concerning Labor Standards	FEB 1988
52.222-15	Certification of Eligibility	MAY 2014
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-55	Minimum Wages for Contract Workers Under Executive Order 14026	JAN 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.223-3	Hazardous Material Identification and Material Safety Data Alternate I	FEB 2021 JUL 1995
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2024
52.223-20	Aerosols	MAY 2024
52.223-21	Foams	MAY 2024

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 24 of 69
52.223-23	Sustainable Products and Services (DEVIATION FEB 2025)	MAY 2024
52.225-9	Buy American – Construction Materials	OCT 2022
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.226-7	Drug-Free Workplace	MAY 2024
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	MAY 2024
52.227-1	Authorization and Consent	JUN 2020
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement	JUN 2020
52.227-4	Patent Indemnity--Construction Contracts	DEC 2007
52.228-2	Additional Bond Security	OCT 1997
52.228-5	Insurance -Work on a Government Installation	JAN 1997
52.228-11	Individual Surety - Pledges of Assets Deviation	FEB 2021 MAY 2023
52.228-12	Prospective Subcontractor Requests for Bonds	DEC 2022
52.228-14	Irrevocable Letter of Credit	NOV 2014
52.228-15	Performance and Payment Bonds – Construction Deviation	JUN 2020 MAY 2023
52.229-3	Federal, State, and Local Taxes	FEB 2013
52.229-12	Tax on Certain Foreign Procurements	FEB 2021
52.232-1	Payments	APR 1984
52.232-5	Payments Under Fixed-Price Construction Contracts	MAY 2014
52.232-16	Progress Payments	NOV 2021
52.232-17	Interest	MAY 2014
52.232-23	Assignment of Claims	MAY 2014
52.232-27	Prompt payment for construction contracts	JAN 2017
52.232-33	Payment by Electronic Funds Transfer - System for Award Management	OCT 2018
52.232-39	Unenforceability of Unauthorized Obligations	JUL 2013
52.232-40	Providing Accelerated Payment to Small Business Subcontractors	MAR 2023
52.233-1	Disputes Alternate I	MAY 2014 DEC 1991
52.233-3	Protest after Award	AUG 1996
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.236-2	Differing Site Conditions	APR 1984
52.236-3	Site Investigation and Conditions Affecting the Work	APR 1984
52.236-5	Material and Workmanship	APR 1984
52.236-6	Superintendence by the Contractor	APR 1984
52.236-7	Permits and Responsibilities	NOV 1991
52.236-8	Other Contracts	APR 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	APR 1984
52.236-10	Operations and Storage Areas	APR 1984
52.236-11	Use and Possession Prior to Completion	APR 1984
52.236-12	Cleaning Up	APR 1984
52.236-13	Accident Prevention Alternate I	NOV 1991 NOV 1991
52.236-14	Availability and Use of Utility Services	APR 1984
52.236-15	Schedules for Construction Contracts	APR 1984
52.236-17	Layout of Work	APR 1984
52.236-21	Specifications and Drawings for Construction	FEB 1997
52.236-26	Preconstruction Conference	FEB 1995
52.237-4	Payment by Government to Contractor	APR 1984
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities	NOV 2024

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 25 of 69
---------------------------	---	----------------------------

52.242-13	Bankruptcy	JUL 1995
52.243-4	Changes	JUN 2007
52.245-1	Government Property	SEP 2021
52.246-21	Warranty of Construction	MAR 1994
52.248-3	Value Engineering – Construction	OCT 2020
52.249-2	Termination for Convenience of the Government (Fixed-Price). Alternate I	APR 2012 SEP 1996
52.249-10	Default (Fixed-Price Construction)	APR 1984
52.252-6	Authorized Deviations in Clauses	NOV 2020
52.253-1	Computer Generated Forms	JAN 1991

FULL-TEXT CLAUSES

DOI Acquisition Regulations (DIAR)

1452.203-70 - Restrictions on Endorsements (JUL 1996)

The Contractor shall not refer to contracts awarded by the Department of the Interior in commercial advertising, as defined in FAR 31.205-1, in a manner which states or implies that the product or service provided is approved or endorsed by the Government, or is considered by the Government to be superior to other products or services. This restriction is intended to avoid the appearance of preference by the Government toward any product or service. The Contractor may request the Contracting Officer to make a determination as to the propriety of promotional material.

(End of clause)

1452.215-70 - Examination of Records by the Department of the Interior (APR 1984)

For purposes of the Examination of Records by the Comptroller General clause of this contract (FAR 52.215-1), the Secretary of the Interior, the Inspector General, and their duly authorized representative(s) from the Department of the Interior shall have the same access and examination rights as the Comptroller General of the United States.

(End of clause)

1452.236-70 - Prohibition Against Use of Lead-based Paint (JUL 1996)

Paint containing more than .06 percent by weight of lead in paint, or the equivalent measure of lead in the dried film of paint already applied, shall not be used in the construction or rehabilitation of residential structures under this contract or any resulting subcontracts.

(End of clause)

1452.280-2 Notice of Indian Economic Enterprise set-aside (FEB 2021)

(a) Definitions as used in this clause.

Alaska Native Claims Settlement Act (ANCSA) means Public Law 92-203 (December 18, 1971), 85 Stat. 688, codified at 43 U.S.C. 1601-1629h.

Indian means a person who is an enrolled member of a Federally Recognized Indian Tribe.

Indian Economic Enterprise means any business activity owned by one or more Indians or Federally Recognized Indian Tribes, provided that:

- (i) The combined Indian or Federally Recognized Indian Tribe ownership of the enterprise shall constitute not less than 51 percent;

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 26 of 69
---------------------------	--	--

- (ii) The Indians or Federally Recognized Indian Tribes shall, together, receive at least 51 percent of the earnings from the contract; and
- (iii) The management and daily business operations of an Indian Economic Enterprise must be controlled by one or more individuals who are Indians. To ensure actual control over the enterprise, the individuals must possess requisite management or technical capabilities directly related to the primary industry in which the enterprise conducts business. Management of Tribally owned Indian Economic Enterprises may be provided by:
 - (A) Committees, teams, or Boards of Directors which are controlled by one or more members of Tribe, or;
 - (B) Non-Tribal members if the enterprise can demonstrate that the Tribe can hire and fire those individuals, that it will retain control of all management decisions common to Committees, teams, or Boards of Directors. Common management decisions, include strategic planning, budget approval, and the employment and compensation of officers. A written management development plan must also exist which shows how Tribal members will develop managerial skills sufficient to manage the enterprise or similar enterprises in the future.

The enterprise must meet the requirements of (i) through (iii) throughout the following time periods:

- (1) At the time an offer is made in response to a written solicitation;
- (2) At the time of contract award; and,
- (3) During the full term of the contract.

Federally Recognized Indian Tribe means an Indian Tribe, band, nation, or other Federally recognized group or community on the List of Federally Recognized Tribes. This definition includes any Alaska Native regional or village corporation under the Alaska Native Claims Settlement Act (ANCSA).

List of Federally Recognized Tribes means an entity appearing on the United States Department of the Interior's List of federally recognized Indian Tribes published annually in the Federal Register pursuant to Section 104 of Public Law 103-454, codified at 25 U.S.C. 5131.

Representation means the positive statement by an enterprise of its eligibility for preferential consideration and participation for acquisitions conducted under the Buy Indian Act, 25 U.S.C. 47, in accordance with the procedures in Subpart [1480.8](#).

(b) General.

- (1) Under the Buy Indian Act, offers are solicited only from Indian Economic Enterprises.
- (2) The Contracting Officer (CO) will reject all offers received from ineligible enterprises.
- (3) Any award resulting from this solicitation will be made to an Indian Economic Enterprise, as defined in paragraph (a) of this clause.

(c) Required Submissions. In response to this solicitation, an offeror must also provide the following:

- (1) A description of the required percentage of the work/costs to be provided by the offeror over the contract term as required by section 1452.280-3, Subcontracting Limitations clause; and
- (2) Qualifications of the key personnel (if any) that will be assigned to the contract.

(d) Required Assurance. The offeror must provide written assurance to the CO that the offeror is and will remain in compliance with the requirements of this clause. It must do this before the CO awards the Buy Indian contract and upon successful and timely completion of the contract, but before the CO accepts the work or product.

(e) Non-responsiveness. Failure to provide the information required by paragraphs (c) and (d) of this clause may cause the CO to find an offer non-responsive and reject it.

(f) Eligibility.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 27 of 69
---------------------------	---	----------------------------

- (1) Participation in the Mentor-Protégé Program established under section 831 of the National Defense Authorization Act for Fiscal Year 1991 (25 U.S.C. 47 note) does not render an Indian Economic Enterprise ineligible for contracts awarded under the Buy Indian Act.
- (2) If a contractor no longer meets the definition of an Indian Economic Enterprise after award, the contractor must notify the CO immediately and in writing. The notification must include full disclosure of circumstances causing the contractor to lose eligibility status and a description of any actions that the contractor will take to regain eligibility. If the contract is unable to regain eligibility, then the contractor must revise its the representations and certifications in the System for Award Management. Failure to give the CO immediate written notification means that:
 - (i) The economic enterprise may be declared ineligible as an IEE for future contract awards under this part; and
 - (ii) The CO may consider termination for default if it is in the best interest of the government.

(End of clause)

1452.280-3 Indian Economic Enterprise subcontracting limitations (FEB 2021)

(a) Definitions as used in this clause.

- (1) *Concern* means any business entity with a place of business located in the United States or its outlying areas and that makes a significant contribution to the U.S. economy through payment of taxes and/or use of American products, materials and/or labor, etc. It includes but is not limited to an individual, partnership, corporation, joint venture, association, or cooperative. For the purpose of making affiliation findings (see FAR 19.101), it includes any business entity, whether or not it is organized for profit or located in the United States or its outlying areas.
- (2) *Subcontract* means any agreement (other than one involving an employer-employee relationship) entered into by a government prime contractor or subcontractor calling for supplies and/or services required for performance of the contract, contract modification, or subcontract.
- (3) *Subcontractor* means a concern to which a contractor subcontracts any work under the contract. It includes subcontractors at any tier who perform work on the contract.

(b) Required Percentages of work by the concern. The contractor must comply with FAR 52.219-14 Limitations on Subcontracting clause in allocating what percentage of work to subcontract. The contractor shall not subcontract work exceeding the subcontract limitations in FAR 52.219-14 to a concern other than a responsible Indian Economic Enterprise.

(c) Any work that an IEE subcontractor does not perform with its own employees shall be considered subcontracted work for the purpose of calculating percentages of subcontract work in accordance with FAR 52.219-14 Limitations on Subcontracting.

(d) Cooperation. The contractor must:

- (1) Carry out the requirements of this clause to the fullest extent; and
- (2) Cooperate in any study or survey that the CO, Indian Affairs, or its agents may conduct to verify the contractor's compliance with this clause.

(e) Incorporation in Subcontracts. The contractor must incorporate the substance of this clause, including this paragraph (e), in all subcontracts for supplies, general services, A-E services, and construction awarded under this contract.

FAR 52.215-8 Order of Precedence—Uniform Contract Format (OCT 1997)

Any inconsistency in this solicitation or contract shall be resolved by giving precedence in the following order:

- (a) The Schedule (excluding the specifications).
- (b) Representations and other instructions.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 28 of 69
---------------------------	---	----------------------------

- (c) Contract clauses.
- (d) Other documents, exhibits, and attachments.
- (e) The specifications.

(End of clause)

FAR 52.219-14 – LIMITATIONS ON SUBCONTRACTING (OCT 2022) (DEVIATION OCT 2022)

- (a) This clause does not apply to the unrestricted portion of a partial set-aside.
- (b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that—
 - (1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and
 - (2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.
- (c) Applicability. This clause applies only to—
 - (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;
 - (4) Orders expected to exceed the simplified acquisition threshold and that are—
 - (i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);
 - (5) Orders, regardless of dollar value, that are—
 - (i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and
 - (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.
- (d) Independent contractors. An independent contractor shall be considered a subcontractor.
- (e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees to the following requirements in the performance of a contract assigned a North American Industry Classification System (NAICS) code applicable to this contract:
 - (1) Services (except construction). It will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.
 - (i) The following services may be excluded from the 50 percent limitation:

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 29 of 69
---------------------------	--	--

(A) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code (562910), cloud computing services, or mass media purchases.

(B) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies). It will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(3) General construction. It will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded.

(4) Construction by special trade contractors. It will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause –
 [Contracting Officer check as appropriate.]

☒ By the end of the base term of the contract and then by the end of each subsequent option period; or
☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

FAR 52.222-9 – APPRENTICES AND TRAINEES (JULY 2005) (DEVIATION FEB 2025)

(a) Apprentices.

(1) An apprentice will be permitted to work at less than the predetermined rate for the work performed when employed-

(i) Pursuant to and individually registered in a bona fide apprenticeship program registered with the U.S. Department of Labor, Employment and Training Administration, Office of Apprenticeship Training, Employer, and Labor Services (OATELS) or with a State Apprenticeship Agency recognized by the OATELS; or

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 30 of 69
--------------------	---	---------------------

- (ii) In the first 90 days of probationary employment as an apprentice in such an apprenticeship program, even though not individually registered in the program, if certified by the OATELS or a State Apprenticeship Agency (where appropriate) to be eligible for probationary employment as an apprentice.
 - (2) The allowable ratio of apprentices to journeymen on the job site in any craft classification shall not be greater than the ratio permitted to the Contractor as to the entire work force under the registered program.
 - (3) Any worker listed on a payroll at an apprentice wage rate, who is not registered or otherwise employed as stated in paragraph (a)(1) of this clause, shall be paid not less than the applicable wage determination for the classification of work actually performed. In addition, any apprentice performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate on the wage determination for the work actually performed.
 - (4) Where a Contractor is performing construction on a project in a locality other than that in which its program is registered, the ratios and wage rates (expressed in percentages of the journeyman's hourly rate) specified in the Contractor's or subcontractor's registered program shall be observed. Every apprentice must be paid at not less than the rate specified in the registered program for the apprentice's level of progress, expressed as a percentage of the journeyman hourly rate specified in the applicable wage determination.
 - (5) Apprentices shall be paid fringe benefits in accordance with the provisions of the apprenticeship program. If the apprenticeship program does not specify fringe benefits, apprentices must be paid the full amount of fringe benefits listed on the wage determination for the applicable classification. If the Administrator determines that a different practice prevails for the applicable apprentice classification, fringes shall be paid in accordance with that determination.
 - (6) In the event OATELS, or a State Apprenticeship Agency recognized by OATELS, withdraws approval of an apprenticeship program, the Contractor will no longer be permitted to utilize apprentices at less than the applicable predetermined rate for the work performed until an acceptable program is approved.
- (b) Trainees.
- (1) Except as provided in 29 CFR 5.16, trainees will not be permitted to work at less than the predetermined rate for the work performed unless they are employed pursuant to and individually registered in a program which has received prior approval, evidenced by formal certification by the U.S. Department of Labor, Employment and Training Administration, Office of Apprenticeship Training, Employer, and Labor Services (OATELS). The ratio of trainees to journeymen on the job site shall not be greater than permitted under the plan approved by OATELS.
 - (2) Every trainee must be paid at not less than the rate specified in the approved program for the trainee's level of progress, expressed as a percentage of the journeyman hourly rate specified in the applicable wage determination. Trainees shall be paid fringe benefits in accordance with the provisions of the trainee program. If the trainee program does not mention fringe benefits, trainees shall be paid the full amount of fringe benefits listed in the wage determination unless the Administrator of the Wage and Hour Division determines that there is an apprenticeship program associated with the corresponding journeyman wage rate in the wage determination which provides for less than full fringe benefits for apprentices. Any employee listed on the payroll at a trainee rate who is not registered and participating in a training plan approved by the OATELS shall be paid not less than the applicable wage rate in the wage determination for the classification of work actually performed. In addition, any trainee performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate in the wage determination for the work actually performed.
 - (3) In the event OATELS withdraws approval of a training program, the Contractor will no longer be permitted to utilize trainees at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

(c) ~~Equal employment opportunity. The utilization of apprentices, trainees, and journeymen under this clause shall be in conformity with the equal employment opportunity requirements of Executive Order 11246, as amended, and 29 CFR Part 30.~~

(End of clause)

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 31 of 69
--------------------	---	---------------------

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) (~~[7 CFR 3201.2](#)~~) [7 CFR 4270.2]).

USDA-designated product category means a generic grouping of products that are or can be made with biobased materials—

- (1) That are listed by USDA in a procurement guideline (~~[7 CFR part 3201, subpart B](#)~~) available at <https://www.biopreferred.gov/resources/categories.html>; and
- (2) For which USDA has provided purchasing recommendations (available at <https://www.biopreferred.gov> [or 7 CFR part 4270]).

(b) The Contractor shall report to <https://www.sam.gov>, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and

(c) Submit this report no later than—

- (1) October 31 of each year during contract performance; and
- (2) At the end of contract performance.

(End of clause)

FAR 52.223-23 – SUSTAINABLE PRODUCTS AND SERVICES (MAY 2024)(DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) (~~[7 CFR 3201.2](#)~~) [7 CFR part 4270.2]).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. ([42 U.S.C. 6903](#)).

Sustainable products and services means ~~products and services that are subject to and meet the following applicable statutory mandates and directives for purchasing:~~

(1) ~~Statutory purchasing programs:~~

- (i) [1] Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines ([42 U.S.C. 6962](#)) ([40 CFR part 247](#)) (~~<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>~~).
- (ii) [2] Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products ([42 U.S.C. 8259b](#)) ([10 CFR part 436, subpart C](#)) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 32 of 69
--------------------	---	---------------------

- (iii)[3] Biobased products meeting the content requirement of the USDA under the BioPreferred® program ([7 U.S.C. 8102](#)) (~~7 CFR part 3201~~) [**7 CFR part 4270**] (<https://www.biopreferred.gov>).
- (iv)[4] Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone ([42 U.S.C. 76711](#)) ([40 CFR part 82, subpart G](#)) (<https://www.epa.gov/snap>).

(2) ~~Required EPA purchasing programs.~~

- (i) ~~WaterSense® labeled (water efficient) products and services (<https://www.epa.gov/watersense/watersense-products>).~~
- (ii) ~~Safer Choice certified products (products that contain safer chemical ingredients) (<https://www.epa.gov/saferchoice/products>).~~
- (iii) ~~Product and services that meet EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023 (<https://www.epa.gov/greenerproducts/recommendations-specifications-standards-and-ecolabels-federal-purchasing>).~~

(b) *Requirements.*

- (1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.
- (2) The Contractor shall ensure that the sustainable products and services required by this contract are—
 - (i) Delivered to the Government;
 - (ii) Furnished for use by the Government;
 - (iii) Incorporated into the construction of a public building or public work; and
 - (iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.
- (3) ~~- (i) Except as provided in paragraph (b)(3)(ii) of this clause, sustainable products and services must meet the applicable standards, specifications, or other program requirements at time of quote or offer submission; and
 - (ii) Sustainable products and services must meet the EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023.~~

(c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which [statutory] purchasing programs apply to a specific product or service.

(End of clause)

FAR 52.244-6 – SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)(DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Commercial product, commercial service and commercially available off-the-shelf item have the meanings contained in Federal Acquisition Regulation (FAR) [2.101](#).

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 33 of 69
--------------------	---	---------------------

Subcontract includes a transfer of commercial products or commercial services between divisions, subsidiaries, or affiliates of the Contractor or subcontractor at any tier.

(b) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(c)

- (1) The Contractor shall insert the following clauses in subcontracts for commercial products or commercial services:
 - (i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) ([41 U.S.C. 3509](#)), if the subcontract exceeds the threshold specified in FAR [3.1004](#)(a) on the date of subcontract award, and has a performance period of more than 120 days. In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.
 - (ii) [52.203-15](#), Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5), if the subcontract is funded under the Recovery Act.
 - (iii) [52.203-17](#), Contractor Employee Whistleblower Rights (NOV 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).
 - (iv) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017).
 - (v) [52.204-21](#), Basic Safeguarding of Covered Contractor Information Systems (NOV 2021) , other than subcontracts for commercially available off-the-shelf items, if flow down is required in accordance with paragraph (c) of FAR clause [52.204-21](#).
 - (vi) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
 - (vii) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
 - (viii) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
 - (ix) (A) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115-390](#), title II).
(B) Alternate I (DEC 2023) of [52.204-30](#).
 - (x) [52.219-8](#), Utilization of Small Business Concerns (FEB 2024) ([15 U.S.C.637](#)(d)(2) and (3)), if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702](#)(a) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.
 - (xi) ~~[Reserved][52.222-21](#), Prohibition of Segregated Facilities (APR 2015).~~
 - (xii) ~~[Reserved][52.222-26](#), Equal Opportunity (SEPT 2016) (E.O. 11246).~~
 - (xiii) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C.4212\(a\)](#));
 - (xiv) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020)([29 U.S.C.793](#)).
 - (xv) [52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C.4212](#)).
 - (xvi) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496), if flow down is required in accordance with paragraph (f) of FAR clause [52.222-40](#).
 - (xvii) (A) [52.222-50](#), Combating Trafficking in Persons (NOV 2021) ([22 U.S.C. chapter 78](#) and E.O. 13627).
(B) Alternate I (MAR 2015) of [52.222-50](#)([22 U.S.C. chapter 78](#) and E.O. 13627).
 - (xviii) [52.222-55](#), Minimum Wages for Contractor Workers under Executive Order 14026 (JAN 2022), if flow down is required in accordance with paragraph (k) of FAR clause [52.222-55](#).

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 34 of 69
---------------------------	---	----------------------------

- (xix) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706), if flow down is required in accordance with paragraph (m) of FAR clause [52.222-62](#).
- (xx) (A) [52.224-3](#), Privacy Training (JAN 2017) ([5 U.S.C. 552a](#)) if flow down is required in accordance with [52.224-3](#)(f).
(B) Alternate I (JAN 2017) of [52.224-3](#), if flow down is required in accordance with [52.224-3](#)(f) and the agency specifies that only its agency-provided training is acceptable).
- (xxi) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxii) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) , if flow down is required in accordance with paragraph (c) of FAR clause [52.232-40](#).
- (xxiii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and [10 U.S.C.2631](#)), if flow down is required in accordance with paragraph (d) of FAR clause [52.247-64](#).
- (2) While not required, the Contractor may flow down to subcontracts for commercial products or commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.
- (d) The Contractor shall include the terms of this clause, including this paragraph (d), in subcontracts awarded under this contract.

(End of Clause)

PART III—REPRESENTATIONS AND INSTRUCTIONS SECTION K—REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS OR RESPONDENTS

FAR 52.252-1 – Solicitation Provision Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

[Acquisition.GOV | www.acquisition.gov](https://www.acquisition.gov)

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

52.204-29	Federal Acquisition Supply Chain Security Act Orders – Representation and Disclosures	DEC 2023
52.211-6	Brand Name or Equal	AUG 1999

PROVISIONS – FULL TEXT

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 35 of 69
--------------------	---	---------------------

DOI Acquisition Regulations (DIAR)

1452.280-4 Indian Economic Enterprise representation (FEB 2021)

(a) The offeror represents as part of its offer that it [] does [] does not meet the definition of Indian Economic Enterprise (IEE) as defined in DIAR 1480.201 and that it intends to meet the definition of an IEE throughout the performance of the contract. The offeror must notify the contracting officer immediately in writing if there is any ownership change affecting compliance with this representation.

(b) Any false or misleading information submitted by an enterprise when submitting an offer in consideration for an award set aside under the Buy Indian Act is a violation of the law punishable under 18 U.S.C. 1001. False claims submitted as part of contract performance are subject to the penalties enumerated in 31 U.S.C. 3729 to 3731 and 18 U.S.C. 287.

(End of provision)

FEDERAL ACQUISITION REGULATION (FAR) (48 CFR CHAPTER 1) CLAUSES

52.201-1 - Acquisition 360: Voluntary Survey (Sep 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: <https://www.acquisition.gov/360>.

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of provision)

52.204-8 Annual Representations and Certifications. (JAN 2025)(DEVIATION FEB 2025)

- (a)
- (1) The North American Industry Classification System (NAICS) code for this acquisition is [insert NAICS code].
 - (2) The small business size standard is [insert size standard].
 - (3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition—
 - (i) Is set aside for small business and has a value above the simplified acquisition threshold;
 - (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
 - (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (b)
- (1) If the provision at [52.204-7](#), System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at [52.204-7](#), System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

- (i) ☐ Paragraph (d) applies.
- (ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

- (i) [52.203-2](#), Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless–

- (A) The acquisition is to be made under the simplified acquisition procedures in [part 13](#);
- (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
- (C) The solicitation is for utility services for which rates are set by law or regulation.

- (ii) [52.203-11](#), Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
- (iii) [52.203-18](#), Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) [52.204-3](#), Taxpayer Identification. This provision applies to solicitations that do not include the provision at [52.204-7](#), System for Award Management.
- (v) [52.204-5](#), Women-Owned Business (Other Than Small Business). This provision applies to solicitations that–

- (A) Are not set aside for small business concerns;
- (B) Exceed the simplified acquisition threshold; and
- (C) Are for contracts that will be performed in the United States or its outlying areas.

- (vi) [52.204-26](#), Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) [52.209-2](#), Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) [52.209-5](#), Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) [52.209-11](#), Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) [52.214-14](#), Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) [52.215-6](#), Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) [52.219-1](#), Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#).

- (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
- (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
- (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

- (xiii) [52.219-2](#), Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#).
- (xiv) ~~[Reserved] [52.222-22](#), Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at [52.222-26](#), Equal Opportunity.~~
- (xv) ~~[Reserved] [52.222-25](#), Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at [52.222-26](#), Equal Opportunity.~~
- (xvi) [52.222-38](#), Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) [52.223-1](#), Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at [52.223-2](#), Reporting of Biobased Products Under Service and Construction Contracts.
- (xviii) [52.223-4](#), Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.
- (xix) ~~[52.223-22](#), Public Disclosure of Greenhouse Gas Emissions and Reduction Goals Representation. This provision applies to solicitations that include the provision at [52.204-7](#).~~
- (xx) [52.225-2](#), Buy American Certificate. This provision applies to solicitations containing the clause at [52.225-1](#).
- (xxi) [52.225-4](#), Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at [52.225-3](#).

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

- (xxii) [52.225-6](#), Trade Agreements Certificate. This provision applies to solicitations containing the clause at [52.225-5](#).
- (xxiii) [52.225-20](#), Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.
- (xxiv) [52.225-25](#), Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
- (xxv) [52.226-2](#), Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

- ☐ (i) [52.204-17](#), Ownership or Control of Offeror.
- ☐ (ii) [52.204-20](#), Predecessor of Offeror.
- ☐ (iii) [52.222-18](#), Certification Regarding Knowledge of Child Labor for Listed End Products.
- ☐ (iv) [52.222-48](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
- ☐ (v) [52.222-52](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
- ☐ (vi) [52.227-6](#), Royalty Information.
- ☐ (A) Basic.
- ☐ (B) Alternate I.
- ☐ (vii) [52.227-15](#), Representation of Limited Rights Data and Restricted Computer Software.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 38 of 69
---------------------------	--	--

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph

(c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR [4.1201](#)); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-24 - Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision.

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) **It ☐ will, ☐ will not** provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—**It ☐ does, ☐ does not** use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 40 of 69
---------------------------	---	----------------------------

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services.

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer.

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.209-7 – Information Regarding Responsibility Matters (OCT 2018)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 41 of 69
---------------------------	---	----------------------------

proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

- (1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in—

- (A) The payment of a monetary fine or penalty of \$5,000 or more; or
- (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

- (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see [52.204-7](#)).

(End of provision)

52.209-13 - Violation of Arms Control Treaties or Agreements-Certification (NOV 2021)

(a) This provision does not apply to acquisitions below the simplified acquisition threshold or to acquisitions of commercial products and services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification.* [Offeror shall check either (1) or (2).]

_____ (1) The Offeror certifies that—

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

_____ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

CONTINUATION SHEET	REF	PAGE OF 43 of 69
--------------------	-----	---------------------

(d) Do not submit an offer unless—

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has—
 - (i) Waived application under U.S.C. 2593e(d) or (e); or
 - (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C.2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.223-1 – Biobased Product Certification (MAY 2024)(DEVIATION FEB 2025)

As required by the Farm Security and Rural Investment Act of 2002 ([7 U.S.C. 8101\(4\)](#)) and the Energy Policy Act of 2005 ([7 U.S.C. 8102\(a\)\(2\)\(F\)](#)), the offeror certifies, by signing this offer, that biobased products (within categories of products listed by the United States Department of Agriculture in [7 CFR part 3201, subpart B](#)) [at <https://www.biopreferred.gov/resources/categories.html>] to be used or delivered in the performance of the contract, other than biobased products that are not purchased by the offeror as a direct result of this contract, will comply with the applicable specifications or other contractual requirements.

(End of provision)

52.229-11 - Tax on Certain Foreign Procurements – Notice and Representation (JUN 2020)

(a) *Definitions.* As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in [26 U.S.C. 7701\(a\)\(30\)](#) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 701\(a\)\(31\)](#)); and
- (5) Any trust if—
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 44 of 69
---------------------------	--	--

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under [26 U.S.C. 5000C](#), the Offeror represents that

- (1) It ☐ is ☐ is not a foreign person; and
- (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

- (1) The clause at FAR [52.229-12](#), Tax on Certain Foreign Procurements, will be included in any resulting contract; and
- (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR [52.229-12](#), Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.236-28 - Preparation of Proposals -- Construction (Oct 1997)

(a) Proposals must be

- (1) submitted on the forms furnished by the Government or on copies of those forms, and
- (2) manually signed or signed with Adobe Certificate. The person signing a proposal must initial each erasure or change appearing on any proposal form.

(b) The proposal form may require offerors to submit proposed prices for one or more items on various bases, including --

- (1) Lump sum price;
- (2) Alternate prices;
- (3) Units of construction; or
- (4) Any combination of paragraphs (b)(1) through (b)(3) of this provision.

(c) If the solicitation requires submission of a proposal on all items, failure to do so may result in the proposal being rejected without further consideration. If a proposal on all items is not required, offerors should insert the words "no proposal" in the space provided for any item on which no price is submitted.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 45 of 69
---------------------------	---	----------------------------

(d) Alternate proposals will not be considered unless this solicitation authorizes their submission.

(End of Provision)

SECTION L—INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

FAR 52.252-1 – Solicitation Provision Incorporated by Reference

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

[Acquisition.GOV | www.acquisition.gov](http://www.acquisition.gov)

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 46 of 69
---------------------------	---	----------------------------

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) PROVISIONS

52.204-7	System for Award Management	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-22	Alternative Line Item Proposal	JAN 2017
52.215-16	Facilities Capital Cost of Money	JUN 2003
52.232-13	Notice of Progress Payments	APR 1984

PROVISIONS – FULL TEXT

DOI Acquisition Regulations (DIAR)

1452.215-71 - Use and Disclosure of Proposal Information- Department of the Interior (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

- (1) “Trade Secret” means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.
- (2) “Confidential commercial or financial information” means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers “commercial and financial information obtained from a person and privileged or confidential,” and exemption (9), which covers “geological and geophysical information, including maps, concerning wells.”

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

“The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract.”

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend: “This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal.”

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CO	PAGE OF 47 of 69
---------------------------	------------------------------------	----------------------------

that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

1452.233-2 – Service of Protest Department of the Interior (JUL 1996) (Deviation)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from electronic correspondence. [Contracting Officer designate the official or location where a protest may be served on the Contracting Officer.]

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

(End of provision)

1452.280-1 Notice of Indian Small Business Economic Enterprise set-aside (FEB 2021)

Under the Buy Indian Act, 25 U.S.C. 47, offers are solicited only from Indian Economic Enterprises (Subpart [1480.8](#)) that are also small business concerns. Any acquisition resulting from this solicitation will be from such a concern. Offers received from enterprises that are not both Indian Economic Enterprises and small business concerns will not be considered and will be rejected.

(End of provision)

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) PROVISIONS

FAR 52.211-3 Availability of Specifications Not Listed in the GSA Index of Federal Specifications, Standards, and Commercial Item Description Standards (JUN 1988)

The specifications cited in this solicitation may be obtained from:

Specification	Address
ASTM Standards	American Society for Testing Materials 100 Barr Harbor Drive

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 48 of 69
---------------------------	---	----------------------------

	West Conshohocken, PA 19428 610.832.9585 or on internet site: www.astm.org
FS	Federal Specifications (GSA) Building 197, Washington Navy Yard, SE Washington, DC 20407

The request should identify the specification requested by date, title, and number, as cited in the solicitation.

(End of Provision)

52.215-1 - Instructions to Offerors -- Competitive Acquisition (NOV 2021)

(a) *Definitions.* As used in this provision --

“Discussions” are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer’s discretion, result in the offeror being allowed to revise its proposal.”

“In writing,” “writing,” or “written” means any worded or numbered expression which can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

“Proposal modification” is a change made to a proposal before the solicitation’s closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

“Proposal revision” is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

“Time,” if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations.* If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) *Submission, modification, revision, and withdrawal of proposals.*

(1) Unless other methods (*e.g.*, electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages

(i) addressed to the office specified in the solicitation, and

(ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show --

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals.

(i) Offerors are responsible for submitting proposals, and any modification, or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)

(A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and --

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 3:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time

specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date.* Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data.* Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall --

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed -- in whole or in part -- for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of -- or in connection with -- the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [*insert numbers or other identification of sheets*]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) *Contract award.*

(1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

- (2) The Government may reject any or all proposals if such action is in the Government's interest.
- (3) The Government may waive informalities and minor irregularities in proposals received.
- (4) The Government intends to evaluate proposals and award a contract *without discussions with offerors* (except clarifications as described in FAR 15.306(a)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.
- (5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.
- (6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.
- (7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.
- (8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.
- (9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.
- (10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.
- (11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:
- (i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.
 - (ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.
 - (iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.
 - (iv) A summary of the rationale for award.
 - (v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 52 of 69
---------------------------	---	----------------------------

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of Provision)

52.216-1 Type of Contract (APR 1984)

The Government contemplates a single award of **firm-fixed price** contract resulting from this solicitation.

(End of Provision)

52.222-5 - Construction Wage Rate Requirements – Secondary Site of the Work (MAY 2014)

- (a)
 - (1) The offeror shall notify the Government if the offeror intends to perform work at any secondary site of the work, as defined in paragraph (a)(1)(ii) of the FAR clause at [52.222-6](#), Construction Wage Rate Requirements, of this solicitation.
 - (2) If the offeror is unsure if a planned work site satisfies the criteria for a secondary site of the work, the offeror shall request a determination from the Contracting Officer.
- (b)
 - (1) If the wage determination provided by the Government for work at the primary site of the work is not applicable to the secondary site of the work, the offeror shall request a wage determination from the Contracting Officer.
 - (2) The due date for receipt of offers will not be extended as a result of an offeror's request for a wage determination for a secondary site of the work.

(End of provision)

52.225-10 Notice of Buy American Requirement - Construction Materials. (MAY 2014)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials" (Federal Acquisition Regulation (FAR) clause 52.225-9).

(b) *Requests for determinations of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR 52.225-9 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) *Evaluation of offers.* (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction material, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(3)(i) of the clause at FAR 52.225-9.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) *Alternate offers.* (1) When an offer includes foreign construction material not listed by the Government in this solicitation in paragraph (b)(2) of the clause at FAR 52.225-9, the offeror also may submit an alternate offer based on use of equivalent domestic construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of the clause at FAR 52.225-9 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of the clause at FAR 52.225-9 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic construction material, and the offeror shall be required to furnish such domestic construction material. An offer based on use of the foreign construction material for which an exception was requested-

- (i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or
- (ii) May be accepted if revised during negotiations. 52.225-12 Notice of Buy American Requirement - Construction Materials under Trade Agreements. (MAY 2014)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "designated country construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials Under Trade Agreements" (Federal Acquisition Regulation (FAR) clause 52.225-11).

(b) *Requests for determination of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause 52.225-11 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) *Evaluation of offers.* (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause 52.225-11.

- (2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) *Alternate offers.* (1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause 52.225-11, the offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.

- (2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause 52.225-11 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

- (3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FAR clause 52.225-11 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the offeror shall be required to furnish such domestic or designated country construction material. An offer based on use of the foreign construction material for which an exception was requested-

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 54 of 69
---------------------------	---	----------------------------

- (i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or
- (ii) May be accepted if revised during negotiations.

(End of Provision)

52.228-1 Bid Guarantee (SEP 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.*, bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds—

- (1) To unsuccessful bidders as soon as practicable after the opening of bids; and
- (2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be twenty (20) percent of the bid price or \$1M, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of provision)

52.233-2 – Service of Protest Department of Interior (SEP 2006) (Deviation)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from the Contracting Officer as received through electronic commerce (email) as identified in the solicitation and award.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

(End of provision)

52.236-27 Site Visit (Construction). (FEB 1995) - Alternate I (FEB 1995))

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors are urged and expected to inspect the site where the work will be performed.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 55 of 69
--------------------	---	---------------------

(b) Site visits should be planned coordinated with the COR for this requirement and potential contractors will not be allowed to access the site on their own due to legal concerns.

(End of Provision)

Special Notice - "System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM."

L.1 Instructions for the Submission of Offers and Other Information

A. GENERAL

All offerors are required to submit, at a minimum, an offer that conforms to all the solicitation requirements. By submission of its offer in accordance with the instructions provided in this section, the offeror unconditionally assents to the terms and conditions in this solicitation document and in any attachments hereto.

Each offeror shall submit an offer that fully addresses the evaluation factors contained in this solicitation and complies with the format, content, and submission instructions contained in this section. **Offerors SHALL carefully review this section and its relationship to Section M prior to commencing proposal preparation!**

B. DISCREPANCIES

If an offeror believes the requirements in this solicitation contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the Contracting Officer (CO) in writing with supporting rationale. The offeror is reminded that the Government reserves the right to award this effort based on the initial proposal, as received, without discussions.

C. ELECTRONIC SUBMISSION OF PROPOSALS/QUOTES

(a) *Definition*. "Electronic proposal/quote," as used in this solicitation, means a proposal/quote, modification of a proposal/quote, or withdrawal of a proposal/quote that is transmitted to and received by the Government via electronic means that communicates and reproduces both printed and handwritten material. The most common and preferred method is direct email.

(b) The government requires the use of electronic proposal/quotes in response to this solicitation. Proposals/Quotes must be submitted electronically via email to: nathan_jones@ios.doi.gov

(c) Electronic proposals/quotes that fail to furnish required representations or information or that reject any of the terms, conditions, and provisions of the solicitation may be excluded from consideration.

(d) Electronic proposals/quotes must contain the required signatures.

(e) The Government reserves the right to make award solely on the electronic proposal/quote. However, if requested to do so by the Contracting Officer, the apparent successful offeror/quoter agrees to promptly submit the complete original signed proposal/quote.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 56 of 69
--------------------	---	---------------------

(f) Refer to Instruction to Offerors/Quotes – Section (c) for electronic submission requirements. The Government will not be and is not responsible for any failure(s) attributable to the transmission or receipt of the electronic proposal/quote including, but not limited to, the following:

- (1) Receipt of garbled or incomplete proposal/quote.
- (2) Availability or condition of the receiving IT equipment.
- (3) Incompatibility between the sending and receiving equipment.
- (4) Delay in transmission or receipt of proposal/quote.
- (5) Failure of the offeror/quoter to properly identify the proposal/quote.
- (6) Illegibility of proposal/quote.
- (7) Security of proposal/quote data.

D. SUBMISSION INSTRUCTIONS

Offerors shall submit their proposals no later than **3:00 PM Eastern Standard Time on May 18th 2026** :
Electronic proposal must be submitted via email to Nathan Jones, Nathan_jones@ios.doi.gov

No Hardcopy, facsimile or in person proposals/quotes shall be accepted.

The last date for contractor to submit any technical questions is **Friday, May 8, 2026**, at 11am. Questions received after this date will not be addressed through any Amendment. ALL technical questions must be submitted in writing only to the Contract Specialist: Nathan Jones.

The offeror/quoter is advised to **carefully read**, understand the quote format, and quote content sections of the RFP. The offer shall clearly demonstrate the offeror's understanding of the overall and specific requirements of the solicitation.

The offer should submit **two (2) separate** files: File I – Factor 1 - Technical Approach and Factor 2 – Contractor Responsibility - File II – Price Proposal. Required contents of each file are detailed below in Section L.2. As there are sometimes limitations on file sizes that can be submitted electronically via email depending on provider, multiple files and emails will be accepted so long as each file is clearly identified, and they are ALL received by the closing date and time.

Electronic copies submission (no hard copy): Emails may include both volumes in one email, and/or multiple emails with each volume clearly marked as an attachment, so long as both volumes are received prior to closing date and time (refer to FAR 52.215-1 for specific electronic requirements). ***If proposals are received after the closing date and time they shall not be accepted.***

If contractors fail to submit any of the required documentation stated in L.2, they may not be considered technically acceptable, and may not be considered further for award, regardless of price (see Section M - (B) for further information).

L.2 REQUIRED SUBMISSION DOCUMENTS:

VOLUME 1

FACTOR 1 - Technical Approach

Sub-Factor A - Technical Approach Document

The offeror must provide a 2-4-page capability document that demonstrates the contractors technical background and capability in performing ALL of the work as stated in the Scope of Work and related attachments included with the solicitation that demonstrates the offeror's overall understanding and ability to anticipate and address significant project constraints, risks, and challenges. It must also identify efficient site-specific approaches that demonstrate the appropriate activities and the most appropriate materials and equipment to be used on the project.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 57 of 69
---------------------------	---	----------------------------

Include a discussion of the offeror's approach to the following:

- Remote site access
- Mobilization – If a trailer is to be used for the transport of the equipment, it must be in compliance with all DOT regulations.
- Safety (e.g., extreme weather; Thunderstorms, Lightning)
- Cultural resource protection (archeological/historic features)
- Natural resource protection (managed wilderness; wildlife; rare, threatened, and endangered species)
- Site reclamation
- Demobilization and site cleanup

Sub-Factor B - Proposed Team to Perform the Work - Identify key personnel and qualifications for the specific scope of work, including loading a trailer if that equipment will be used. Provide an organization chart showing supervisory and other roles. Must identify which work is self-performed and which work is to be subcontracted if applicable. Note - this information can be included in the document for sub-factor A, so long as it is clearly identified).

Sub-Factor C – Schedule - Provide a draft schedule (Gantt Chart) showing proposed period of performance, duration of tasks/time allotment, and proper sequencing. Account for potential impacts from location, weather, and time of year restrictions related to wildlife species. Include a critical path for activities (it can be separate documents).

Sub-Factor D – Relevant Project Experience - The Contractor is required to provide relevant information from at least three (3) prior projects within the last five (5) years that are similar to the work described in this solicitation so the Government can verify contractor's relevancy experience for similar work, magnitude of effort and complexities. The offeror can use Attachment 9 or equivalent documents so long as the information included in Attachment 10 is addressed.

The work does not need to be Federal but needs to be similar for it to be considered relevant and technically acceptable.

Sub-Factor E - Biobased Certification - Completed Biobased Certification Document

FACTOR 2 – Contractor Compliance (non-price)

Sub-Factor A – Verification of Active SAM Registration

- Provide current UEI# (offeror can use Attachment 10 or equivalent documentation)
- Include Offerors TIN # (required for award documentation if selected) (offeror can use Attachment 10 or equivalent documentation)
- The contractor must be registered under NAICS Code 237120 as a Small Business and be an Indian Small Business Economic Enterprise (ISBEE).

Sub-Factor B – Completed Provisions – Provide the following completed Provisions included in Solicitation as identified below:

- FAR 52.204-24 – Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (NOV 2021)
- 1452.280-4 - Indian Economic Enterprise representation (FEB 2021) -
- 52.209-7 – Information Regarding Responsibility Matters (OCT 2018)
- 52.209-13 - Violation of Arms Control Treaties or Agreements-Certification (NOV 2021)
- 52.229-11 - Tax on Certain Foreign Procurements – Notice and Representation (JUN 2020)

Note the provisions identified above may or may not be in your SAM Representations and Certifications so do not submit your SAM Representations and Certifications submit the completed provisions included in the solicitation separately.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 58 of 69
---------------------------	---	----------------------------

Sub-Factor C- Bid Bond – Provide a Bid Bond as required by FAR 52.228-1 – Bid Guarantee on SF-24. The amount of the bid guarantee shall be twenty (20) percent of the bid price or \$100,000.00., whichever is less.

Sub-Factor D – Limitations on Subcontracting Compliance Worksheet – Offeror must provide a completed Limitations on Subcontracting Compliance Worksheet (Attachment 8).

VOLUME 2

FACTOR 3 – PRICING

1. Standard Form 1442, Solicitation, Offer, and Award, (Construction, Alteration, or Repair): Complete blocks 14 through 20C only. An official having the authority to contractually bind the offeror's company must sign the SF 1442 in accordance with the procedures prescribed in FAR section 4.102.
2. Acknowledgement of Amendments (if applicable): In accordance with Section L, Instructions to Offerors-Competitive Acquisition, acknowledge all solicitation amendments using one of the methods set forth in Block 11 of Standard Form 30, the amendment.
3. Section B, Contract Price Schedule: Enter the proposed dollar amount for each line item in the price schedule.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 59 of 69
---------------------------	---	----------------------------

SECTION M—EVALUATION FACTORS FOR AWARD DETERMINATION

A. BASIS FOR AWARD:

The Lowest Price Technically Acceptable source selection process identified in FAR Part 15.101-2 will be utilized to select the successful contractors. The contract award will be made to a single offeror whose proposal meets the requirements stated in solicitation and is determined to provide the lowest price to the Government.

The award will be made to the lowest price responsible offeror whose offer is determined technically acceptable based on the factors below.

B. EVALUATION FACTORS AND SUBFACTORS:

The technical evaluation of proposals will be conducted in strict confidence. The number and identities of offerors will not be revealed to anyone not involved in the evaluation and award process or to other offerors. Proposals will be evaluated based only on the factors described herein. No ranking of proposals will be included in source selection hence information about where once contractor's price placed among all other offers shall not be disclosed.

Proposals will be evaluated against the factors and sub-factors set forth in this section. Technical documentation will receive a preliminary review to determine whether they are acceptable or not acceptable based on what is prescribed herein, which will allow the Government to perform a meaningful evaluation Technical Approach and Contractor Responsibility. If the results of this preliminary review indicate an offeror(s) fails to submit any of the required documentation and/or incomplete documentation as stated in L.2, they may not be considered technically acceptable, and may not be considered further for award, regardless of price.

If more than one (1) offeror fails to submit the required documentation and/or provides required documentation that appears to be incomplete (i.e., missing signatures, acknowledge of provisions, etc.) the Government may at its discretion request any missing documentation or incomplete documentation after receipt of proposals as necessary from any offeror that submitted as response to the solicitation.

When contractors are required to submit missing documentation and/or incomplete documentation, they shall submit it within the timeframe specified in the Government request. If the contractor fails to submit within the timeframe specified, they will not be considered technically acceptable at that point. All requests will be provided via email, and the Government is not responsible for missed, unread or emails that end up in junk/spam folders.

Any offeror's proposal eliminated at this stage from further evaluation or consideration for an award will be notified with the reasons why its proposal was eliminated from further evaluation or consideration for award in accordance with FAR 15.503. Price portions of proposals will be evaluated independently of technical portions of proposals.

After completion of the technical and price evaluations, a recommendation will be made for award based on the evaluations. The Government will consider all proposals and the evaluation factors stated herein, including assessment of

the degree of risk associated with the proposals, to determine the apparent successful offeror. The Government’s decision will be based on a comparative assessment of proposals against all source selection factors specified in the solicitation. It is exceptionally important that offerors **do not omit any documentation required for evaluation.**

C. EVALUATION FACTORS:

The significant factors and any significant subfactors listed in order of importance that will be considered in awarding the contract are:

FACTOR 1: TECHNICAL APPROACH (non-price): All Sub-Factors must be considered “Technically Acceptable” for Factor 1 to be Considered “Technically Acceptable.” If one (1) or more Sub-Factors are found “Technically Unacceptable” Factor 1 will be considered “Technically Unacceptable.”

Sub-Factor A - Technical Approach Document - The offeror must provide a 5-7-page capability document that demonstrates the contractors technical background and capability in performing ALL of the work as stated in the Scope of Work and related attachments included with the solicitation that demonstrates the offeror’s overall understanding and ability to anticipate and address significant project constraints, risks, and challenges. If must also identify efficient site-specific approaches that demonstrate the appropriate activities and the most appropriate materials and equipment.

Include a discussion of the offeror’s approach to the following:

-
- Natural resource protection (release of freon into the air)
- Site reclamation
- Demobilization and site cleanup

The Government will evaluate if the offeror discussed and provided all the required information stated above.

Sub-Factor A – Technical Approach Document Evaluation	
Rating	Definition
Technically Acceptable	The contractor provided all the information required in Sub-Factor A.
Technically Unacceptable	The contractor did not provide all the information required in Sub-Factor A.

Sub-Factor B - Proposed Team to Perform the Work - Identify key personnel and qualifications for the specific scope of work, and the equipment will be used. Provide an organization chart showing supervisory and other roles. Must identify which work is self-performed and which work is to be subcontracted if applicable. Note - this information can be included in the document for sub-factor A, so long as it is clearly identified).

Sub-Factor B – Proposed Team to Perform the Work Evaluation	
Rating	Definition
Technically Acceptable	The contractor provided all the information required in Sub-Factor B.
Technically Unacceptable	The contractor did not provide all the information required in Sub-Factor B.

Sub-Factor C – Draft Project Schedule - Provide a draft schedule (Gantt Chart) showing proposed period of performance, duration of tasks/time allotment, and proper sequencing. Account for potential impacts from location, weather, and time of year restrictions.

Sub-Factor C – Draft Project Schedule Evaluation	
Rating	Definition
Technically Acceptable	The contractor provided a draft schedule that meets the mandatory period of performance listed in Block 11 of the SF-1442 and Section C.5.
Technically Unacceptable	The contractor did not provide a draft schedule or did not provide draft schedule that meets the mandatory period of performance listed in Block 11 of the SF-1442 and Section C.5.

Sub-Factor D – Relevant Project Experience - The Government will review responses to the Relevant Experience Questionnaire or equivalent document for this evaluation sub-factor. The Contractor is required to provide relevant information regarding three (3) prior projects that are similar to the work described in this solicitation so the Government can verify contractor’s relevancy experience for similar work. The work does not need to be Federal but needs to be similar for it to be considered relevant and technically acceptable. If the information provided is not considered relevant, the Project Relevant Experience rating will be considered not technically acceptable.

Sub-Factor D - Relevant Project Experience Evaluation	
Rating	Definition
Technically Acceptable	The contractor provided at least three (3) relevant projects that are similar to the work described in the solicitation within past five (5) years.
Technically Unacceptable	The contractor did not provide at least three (3) relevant projects that are similar to the work described in the solicitation within past five (5) years.

Sub-Factor E – Biobased Certification - The offerors shall identify the Biobased products to be purchased and used under this contract using the Biobased Certification or equivalent documentation. For each Biobased product the offeror shall specify the percentage of Biobased content, and for the USDA-designated Biobased content products, the offeror shall demonstrate that the products to be used under this contract will contain the percentage specified in the USDA recommendations or the highest level of Biobased material practicable, consistent with USDA's recommended percentages of Biobased content.

Sub-Factor E - Biobased Certification Evaluation	
Rating	Definition
Technically Acceptable	Proposal clearly states the utilization/non-utilization of Biobased products, List of products, certification, and operation plan. Note if Biobased products are NOT going to be utilized that must also be stated in their response for it to be considered Technically Acceptable.
Technically Unacceptable	There is NO response (meaning any kind of acknowledge, either yes or no) provided or proposal does not clearly state the utilization/non-utilization of Biobased products, does not include a list of products, lacks certification documentation, and is lacking in clear understanding of operation plan – will not be considered Technically Unacceptable.

FACTOR 2 – CONTRACTOR COMPLIANCE (non-price) - All Sub-Factors must be considered “Technically Acceptable” for Factor 2 to be Considered “Technically Acceptable.” If one (1) or more Sub-Factors are found “Technically Unacceptable” Factor 2 will be considered “Technically Unacceptable.”

Sub-Factor A – Active SAM Registration and ISBEE Certification

- Did offeror provide current UEI#
- Did offeror provide TIN # (required for award documentation if selected)

Is the offeror registered under NAICS Code 238220 as a Small Business Sub-Factor A – Active SAM Registration	
Rating	Definition
Technically Acceptable	The contractor provided all the information required in Sub-Factor A and are confirmed to have active SAM.gov registration
Technically Unacceptable	The contractor did not provide all the information required in Sub-Factor A. The offeror is found not to have an Active SAM.gov registration and/or found to not be a Small Business

Sub-Factor B – Completed Provisions – Provide the following completed Provisions included in Solicitation as identified below:

- FAR 52.204-24 – Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (NOV 2021)
- 52.209-7 – Information Regarding Responsibility Matters (OCT 2018)
- 52.209-13 - Violation of Arms Control Treaties or Agreements-Certification (NOV 2021)
- 52.229-11 - Tax on Certain Foreign Procurements – Notice and Representation (JUN 2020)

Sub-Factor B – Completed Provisions - Ratings	
Rating	Definition
Technically Acceptable	The contractor provided all the required complete provisions included in the solicitation as required.
Technically Unacceptable	The contractor did not provide all the required complete provisions included in the solicitation as required.

Sub-Factor C- Bid Bond – Provide a Bid Bond as required by FAR 52.228-1 – Bid Guarantee on award (cashier’s checks, postal money orders, certified checks, etc. will not be accepted as CO does not have a secure location to store them. The amount of the bid guarantee shall be twenty (20) percent of the bid price or \$1M, whichever is less.

Sub-Factor C - Bid Bond - Ratings	
Rating	Definition
Technically Acceptable	The contractor provided a Bid Bond in the amount of twenty (20) percent of the bid price \$100,000.00, or whichever is less on award as required by FAR 52.228-1.
Technically Unacceptable	The contractor did not provide a Bid Bond in the amount of twenty (20) percent of the bid price or \$100,000.00, whichever is less on award as required by FAR 52.228-1.

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE OF 63 of 69
---------------------------	---	----------------------------

Sub-Factor D – Limitations on Subcontracting Compliance Worksheet – Offeror must provide a completed Limitations on Subcontracting Compliance Worksheet (Attachment 8).

Sub-Factor D – Limitations of Subcontracting Compliance Worksheet - Ratings	
Rating	Definition
Technically Acceptable	The contractor provided the Limitations on Subcontracting Compliance Worksheet as is less than the 75% required for Construction by Special Trade Contractors
Technically Unacceptable	The contractor did not provide the Limitations on Subcontracting Compliance Worksheet as required or the percentage exceeds 75% required for Construction by Special Trade Contractors

Overall Technical Acceptability Rating – If an offeror is found “Technically Acceptable” in both Factor 1 and Factor 2 the offeror will be found “Technically Acceptable” and will move on to lowest price evaluation. If an offeror is found “Technically Unacceptable” in both Factor 1 and Factor 2 or in either Factor 1 or Factor 2 the overall rating will be found as “Technically Unacceptable” and not considered any further beyond the technical evaluation regardless of price.

FACTOR 3: PRICING – Lowest Price of Technically Acceptable Offer

Following the technical evaluation of non-price factors and subfactors, all proposals that are determined to be technically acceptable, as defined above, will then be sorted by price from lowest to highest. The lowest priced offeror that includes/submits all requirements established in the solicitation and is considered technically acceptable with regard to technical capability and past performance will be recommended for award.

The offeror’s price proposal will not be point scored or adjectivally rated but will be evaluated in accordance with one or more of the techniques identified in FAR 15.404-1 Proposal Analysis techniques (b) Price Analysis (2) examples of various price analysis techniques and procedures. The price proposal will also be used as an aid to determine the offeror’s understanding of the requirements of the solicitation, price reasonableness, and to assess the validity of the offeror’s approach to managing and performing the work.